

ommentatory, or *expressing a belief* (c). Thus if he "desire" (d), "will" (e), "request" (f), "will and *desire" (a), "will and declare" (b), "wish and [*131] request" (c), "wish and desire" (d), "entreat" (e), "most heartily beseech" (f), "order and direct" (g), "authorize and empower" (h), "recommend" (i), "beg" (j),

(c) *Cary v. Cary*, 2 Sch. & Lef. 189, *per* Lord Redesdale; *Paul v. Compton*, 8 Ves. 380, *per* Lord Eldon.

(d) *Harding v. Glyn*, 1 Atk. 469; *Mason v. Limbury*, cited *Vernon v. Vernon*, Amb. 4; *Trot v. Vernon*, 8 Vin. 72; *Pushman v. Filliter*, 3 Ves. 7; *Brest v. Offley*, 1 Ch. Rep. 246; *Bonser v. Kinnear*, 2 Giff. 195; *Cary v. Cary*, 2 Sch. & Lef. 189; *Cruwys v. Colman*, 9 Ves. 319; and see *Shaw v. Lawless*, Ll. & G. *temp.* Sugden, 154; *C. S.* 5 Cl. & Fin. 129; *S. C. Ll. & G. temp.* Plunket, 559.

(e) *Eales v. England*, Pr. Ch. 200; *Clowdsley v. Pelham*, 1 Vern. 411.

(f) *Pierson v. Garnet*, 2 B. C. C. 38; *S. C.* affirmed, *id.* 226; *Eade v. Eade*, 5 Mad. 118; *Moriarty v. Martin*, 3 Ir. Ch. Rep. 26; *Bernard v. Minshull*, Johns. 276; and see *House v. House*, 31 L. T. N. S. 427; 23 W. R. 22.

(a) *Birch v. Wade*, 3 V. & B. 198; *Forbes v. Ball*, 3 Mer. 437.

(b) *Gray v. Gray*, 11 Ir. Ch. Rep. 218. The devise was "to A. and B. in the most absolute manner, and willing and declaring an intention." But the decision turned also on other grounds.

(c) *Foley v. Parry*, 5 Sim. 138; affirmed 2 M. & K. 138.

(d) *Liddard v. Liddard*, 28 Beav. 266.

(e) *Prevost v. Clarke*, 2 Mad. 458; *Meredith v. Heneage*, 1 Sim. 553, 555, *per* Chief Baron Wood; and see *Taylor v. George*, 2 V. & B. 378.

(f) *Meredith v. Heneage*, 1 Sim. 553, *per* Chief Baron Wood.

(g) *Cary v. Cary*, 2 Sch. & Lef. 189; *White v. Briggs*, 2 Phill. 583.

(h) *Brown v. Higgs*, 4 Ves. 708; 5 *id.* 495; affirmed 8 Ves. 561; and in D. P. 18 Ves. 192.

(i) *Tibbits v. Tibbits*, Jac. 317; *S. C.* affirmed 19 Ves. 656; *Horwood v. West*, 1 S. & S. 387; *Paul v. Compton*, 8 Ves. 380, *per* Lord Eldon; *Malim v. Keighley*, 2 Ves. jun. 333; *S. C.* *ib.* 529; *Malim v. Barker*, 3 Ves. 150; *Meredith v. Heneage*, 1 Sim. 553, *per* Chief Baron Wood; *Kingston v. Lorton*, 2 Hog. 166; *Cholmondeley v. Cholmondeley*, 14 Sim. 590; *Hart v. Tribe*, 18 Beav. 215; and see *Meggison v. Moore*, 2 Ves. jun. 630; *Sale v. Moore*, 1 Sim. 534; *Ex parte Payne*, 2 Y. & C. 636; *Randal v. Hearle*, 1 Anst. 124; *Lefroy v. Flood*, 4 Ir. Ch. Rep. 1. As to *Cunliff v. Cunliff*, Amb. 686, see *Pierson v. Garnet*, 2 B. C. C. 46; *Malim v. Keighley*, 2 Ves. jun. 532; *Pushman v. Filliter*, 3 Ves. 9.

(j) *Corbet v. Corbet*, 7 I. R. Eq. 456.

Implied trusts are not within statute of uses; *Strimpfler v. Roberts*, 18 Pa. St. 283; 57 Am. Dec. 606; nor statute of limitations; *Ins. Co. v. Page*, 17 B. Mon. 412; 66 Am. Dec. 165; governed by same general rules as other trusts; *Kelley v. Jenness*, 50 Me. 455; 79 Am. Dec. 623; an implied trust is ended when the trustee manifests his intention to hold the trust property as his own; *De Cordova v. Smith*, 9 Tex. 129; 58 Am. Dec. 136. In the province of Ontario, "I wish and desire" were not precatory merely, but directory; *Baby v. Miller*, 1 E. & A. 218; likewise "requesting her to will the same to our children, as